

Conditional Waiver and Release on Final Payment

Texas Property Code § 53.284(d) · statutory form · signed by the subcontractor

Project

Job No.

On receipt by the signer of this document of a check from _____ in the sum of _____
(maker of check)
payable to _____ and when the check has been properly endorsed
\$ _____
(payee or payees of check)
and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanic's lien right, any right arising from a payment bond that complies with a state or federal statute, any common law payment bond right, any claim for payment, and any rights under any similar ordinance, rule, or statute related to claim or payment rights for persons in the signer's position that the signer has on the property of _____ located at _____ to the following extent:
(owner) (location)
_____.
(job description)

This release covers the final payment to the signer for all labor, services, equipment, or materials furnished to the property or to _____.
(person with whom signer contracted)

Before any recipient of this document relies on this document, the recipient should verify evidence of payment to the signer.

The signer warrants that the signer has already paid or will use the funds received from this final payment to promptly pay in full all of the signer's laborers, subcontractors, materialmen, and suppliers for all work, materials, equipment, or services provided for or to the above referenced project up to the date of this waiver and release.

By (Signature)

Date

Company name

Title